

24STCV31579 24STCV31579

County: los-angeles

Division: Civil Law and Motion

Department: 14

Hearing date: 2026-06-29

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Case Number: 24STCV31579 Hearing Date: June 29, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

VICTORIA ROBERTS, individually and a Successor in Interest to JACKIE D.
ROBERTS, deceased, et al.,

Plaintiffs,

v.

3M COMPANY, et al.

Defendants.

Case No. 24STCV31579

Hearing Date: June 29, 2026

Time:

9:00 a.m.

2 [TENTATIVE] ORDER

RE:2

DEFENDANT ROCKWELL AUTOMATION, INC.'S MOTION
FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

I.

Background

On June 13, 2025, Plaintiffs Victoria and Jackie Roberts filed their complaint for personal injury alleging Mr. Roberts developed mesothelioma from direct exposure to asbestos and asbestos-containing products from his work as an electrician. Plaintiffs also allege that he was exposed to asbestos-contaminated talc products. On March 8, 2025, Mr. Roberts died. On June 13, 2025, Plaintiffs Victoria Roberts, Kenneth Roberts and Cheryl Martin filed the operative first amended complaint for wrongful death. As against Rockwell Automation, Inc. ("Rockwell" or "Defendant"), Plaintiffs sue Rockwell for its activities manufacturing electrical panels and electrical products under the name Allen-Bradley Company, LLC ("Allen Bradley").

On March

19, 2026, Rockwell moved for summary judgment on the grounds that Plaintiffs lack and cannot reasonably obtain evidence supporting their assertion that Mr. Roberts was exposed to an asbestos-containing product for which Rockwell was responsible. In the alternative, Rockwell moves for summary adjudication of each cause of action.

On May

21, 2026, Plaintiffs opposed, arguing Rockwell failed to shift its burden on summary judgment. Alternatively, Plaintiffs argue a continuance under Code of Civil Procedure section 437c, subdivision (h) to take the deposition of Rockwell's person most qualified ("PMQ").

In

reply, Rockwell reiterates its arguments that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Roberts was exposed to an asbestos-containing product for which it was responsible. Rockwell also argues that the request for continuance should be denied because Plaintiffs fail to explain the delay in noticing the deposition and how the deposition will create

a triable issue of material fact.

At the

hearing on June 12, 2026, the court granted Plaintiffs' request to continue the hearing on this matter to allow Plaintiffs to file a supplemental opposition in light of a recent deposition. Plaintiffs filed their supplemental opposition on June 17, 2026. Rockwell filed its supplemental reply on June 23, 2026.

Rockwell

satisfies its burden to show that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Roberts was exposed to an asbestos-containing product for which it was responsible. Plaintiffs fail to present affirmative evidence supporting their claims against Rockwell. The motion for summary judgment is granted. The motions for summary adjudication are moot.

II.

Evidentiary Objections

Plaintiffs' Objections

Sustained:

1. Declaration of Andrew

Jaap, Paragraph 18, page 4, lines 23-24: "Prior to the 1930s, all known Allen-Bradley control panels and motor controllers typically had a slate backing board or backing plate."

Mr. Jaap's declaration provides

no basis for his personal knowledge as to the facts within his declaration. There is no indication that Mr. Jaap was employed by Defendant in the 1930s or between 1964 and 1985, or otherwise had personal knowledge of the facts stated in his declaration during that time period. Moreover, he is not qualified as an expert and therefore not entitled to rely on hearsay, including the unidentified "product literature, testing, bills of material, and engineering records" which were not placed into the record. (Jaap Decl. at ¶7.) Accordingly, Mr. Jaap's declaration is inadmissible for lack of foundation. (See LAOSD Asbestos Cases (2023) 87 Cal.App.5th 939, 951 ["Even assuming for the sake of argument that Gallo could 'channel' information received from individuals who had personal knowledge of events and could testify as witnesses, there is no

indication that such persons were the source of Gallo's information.¿Given the timeframe involved, Gallo is most likely 'channeling' information from people who not only lacked personal knowledge themselves, but acquired their information from people who also lacked personal knowledge.¿This oral passing of information raises exactly the reliability concerns which animate the personal knowledge requirement, not to mention the rule against hearsay."])

Plaintiffs' objections 2

and 5 to the declaration of Mr. Jaap are sustained for the same reasons.

Not relied upon: Objections 3, 4.

Rockwell's Objections

Sustained

5. Blumenfeld-James

Dec., ¶10 Attached as Exhibit H is a true and correct copy of an Interdepartmental letter to Gene Verret from Gerry Fryda Re: Bulletin 500 Switch Components dated April 14, 1983. This exhibit is not authenticated. There is no evidence that supports that this document is what Plaintiffs purport it to be.

6. Blumenfeld-James

Dec., ¶11 Attached as Exhibit I is a true and correct copy of excerpts from the Deposition of Rockwell Automation through their prior 30(b)(6) designee Charles Germain taken February 14, 2008 in Whitmore v. Alfa Laval, Inc. Mr. Germain's prior deposition testimony from the Whitmore matter is an out court statement introduced for the truth of the matters asserted therein, and therefore inadmissible in the absence of a valid hearsay exception. (Evid. Code, § 1200.) Plaintiff fails to identify a valid hearsay exception to support the admissibility of this prior testimony. Plaintiff fails to rebut the general rule against the admissibility of former deposition testimony. (Berroteran v. Superior Court (2022) 12 Cal.5th 867, 895 ["The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony."].) Plaintiff offers no evidence or argument to support the admissibility of this deposition and do not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent

agreement was made to use the deposition as trial testimony, or that any of the Berroteran factors bear in favor of the admissibility of the deposition.

9, 10. These objections are sustained for the same reasons as objection number 6.

Overruled

1. Declaration of Jordan Blumenfeld-James ("Blumenfeld James Dec."), ¶14 Attached as Exhibit B is a true and correct copy of excerpts from the Deposition of Jackie Roberts, Vol. 2, p. 145:5-7, 145:9-18. This exhibit is relevant to whether Allen Bradley products were present at Mr. Roberts's worksite. The testimony regarding whether Allen Bradley products were present at the worksite is not prejudicial to Rockwell.

2-4. These objections are overruled for the same reasons as objection number 1.

Not relied upon: 7, 8

III.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must "conclusively negate[] a necessary element of the plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial." (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing "that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (Id. at

p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

The court is required to view the evidence in the light most favorable to Plaintiffs as the nonmoving party and “liberally construe plaintiff[s] evidentiary submissions and strictly scrutinize defendant[s] own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff[s] favor.” (McDonald v. Antelope Valley Community College Dist. (2008) 45 Cal.4th 88, 96–97.)

B.
Causation

In asbestos litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure” to asbestos-containing products and must further establish to a “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416 (Lineweaver).)

Where a plaintiff’s allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence “defendant’s product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it...” (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420.] (“Turley”).) Where a defendant

manufactures similar products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant's product. (Collin v. CalPortland Co., (2014) 228 Cal.App.4th 582, 593 ("Collin").)

California

law generally does not hold a manufacturer of a product liable for replacement asbestos-containing subcomponents supplied by another manufacturer. California accepts the "bare metal defense" such that manufacturers of a product are not generally liable for design defect or failure to warn when asbestos-containing sub-components it did not manufacture or supply are incorporated into its product. (O'Neil v. Crane Co. (2012) 53 Cal.4th 335, 362 ["We reaffirm that a product manufacturer generally may not be held strictly liable for harm caused by another manufacturer's product. The only exceptions to this rule arise when the defendant bears some direct responsibility for the harm, either because the defendant's own product contributed substantially to the harm [citation] or because the defendant participated substantially in creating a harmful combined use of the products [citation]"].)

1.

Defendant's Burden: Factually Devoid

Rockwell

moves for summary judgment on the grounds that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Roberts was exposed to an asbestos-containing product for which it is responsible. Specifically, Rockwell argues that Plaintiffs' discovery responses are devoid of facts supporting their contention that Mr. Roberts was exposed to asbestos-containing electrical panels and electrical products supplied by Allen Bradley. (Motion at pp.7-8 ["Plaintiffs can only identify Allen-Bradley products by generic terms, such as "electrical panels" and unspecified 'electrical products.'... Importantly, however, Plaintiffs not only fail to identify any particular equipment or component parts at issue but also clearly lack basic information about the types of products...Specifically, just as it would be important to know the model, year of manufacture, and perhaps the number of doors on a vehicle involved in an auto case to determine the components that may be at issue, it's important to know the bulletin, series, size, and year of manufacture in order to begin to determine whether a specific Allen Bradley product contained asbestos...This is

crucial information because not all Allen Bradley products contained asbestos. ...Yet, Plaintiffs' discovery responses and the deposition testimony of Decedent, are painfully devoid of that critical information."].)

In opposition, Plaintiffs argue that Rockwell did not shift its burden on summary judgment because their discovery responses were factually rich and there is affirmative evidence that Mr. Roberts was exposed to asbestos by Allen Bradley products because Rockwell admits those products contained asbestos (Opp. at p.4 ["Because Plaintiffs' responses contain specific, responsive facts, they are not factually devoid as a matter of law. (Ganoe, supra, 227 Cal.App.4th at 1578-1579.) Plaintiffs identified as fact witnesses Mr. Roberts who recalled working with Allen-Bradley equipment which Allen-Bradley admits contained asbestos."].) Alternatively, Plaintiffs argue that a continuance of the motion is warranted because they have not had the opportunity to depose Rockwell's PMQ. (Opp. at p.10.)

On reply, Rockwell argues that Plaintiffs discovery responses are devoid of any specific activities Mr. Roberts performed that would have exposed him to asbestos from Allen Bradley products. (Reply at p.1.) Rockwell also argues that there is no evidence of the specific Allen Bradley products Mr. Roberts encountered in his work. (Id.) The court notes that Rockwell filed additional evidence with its reply in violation of Code Civ. Proc. section 437c, subdivision (b)(4), which prohibits moving parties from filing new evidentiary matters on reply. The court will not consider the evidence submitted on reply.

Rockwell meets its burden to show that Plaintiffs' discovery responses are devoid of facts supporting their contention that Mr. Roberts was exposed to an asbestos-containing product for which it was responsible. Rockwell relies on Mr. Roberts's deposition testimony, Plaintiffs' responses to written discovery, deposition testimony taken of plaintiffs in other matters, and the declaration of a corporate representative, Andrew Jaap, as evidence to support its contention.

When Rockwell asked Plaintiffs to identify each fact in support of their contention that Mr. Roberts inhaled asbestos fibers released from Rockwell's products, Plaintiffs responded in relevant part:

"Decedent Jackie

Roberts's exposure to asbestos and asbestos-containing products and/or equipment and/or equipment solely designed to be used with asbestos-containing products occurred at various locations from 1966-2007. Plaintiffs allege that during this employment he worked with, or around others working with, asbestos containing products and products designed to be used with asbestos which caused him to be exposed to asbestos. It is this exposure to asbestos that caused Mr. Roberts to develop mesothelioma, which was the ultimate cause of his death. The products Mr. Roberts worked with and around during this employment was made by various entities, including, though not necessarily limited to: Allen Bradley electrical panels and electrical products manufactured, sold or supplied by ROCKWELL AUTOMATION INC."

(Rockwell's Index of Exhibits, Exh. F at pp.2-3.)

Mr. Roberts testified at his deposition that he associated Allen Bradley products with relays, controllers, and programmable logic controllers ("PLCs"). (Rockwell's Index of Exhibits, Exh. J at 44:16-25.) Mr. Roberts recalled working with Allen Bradley products at Kaiser Steel and at a paper mill. (Id. at 45:1-24.) He could not recall what year or decade he first started working with Allen Bradley but recalled that he primarily worked with Allen Bradley at a paper mill. (Id.) Mr. Roberts also recalled working with Allen Bradley products at an aluminum plant before 1984. (Id. at 46:13-20.) Mr. Roberts had no personal knowledge that an Allen Bradley product he worked with contained asbestos and did not know the maintenance or repair history of any product that he removed or repaired. (Id. at 49:10-17.) Mr. Roberts worked on existing electrical equipment at Kaiser Steel that was installed before he began working there. (Id., Exh. K at 63:14-22.) Mr. Roberts had no knowledge of the model, serial, bulletin, or specification numbers for the electrical components he worked with. (Id. at 66:22-67:2.)

Rockwell also relies on the declaration of its engineer, Andrew Jaap, who declared that Rockwell's electrical components were asbestos free by the end of 1978. (Jaap Decl. at ¶23.) The court sustained Plaintiffs' objections to these portions of Jaap's declaration.

Rockwell satisfies its burden to show that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Roberts was exposed to an

asbestos-containing product for which it is responsible. Plaintiffs' discovery responses were required to provide a factual basis to show Rockwell products were present at Mr. Roberts's worksite and that these products contained asbestos. (Turley, *supra*, 18 Cal.App.5th at p. 980, Collin, *supra*, 228 Cal.App.4th at p. 593.) Moreover, Plaintiffs' responses to Rockwell's interrogatories indicate that Mr. Roberts was allegedly exposed to asbestos by asbestos-containing electrical components. (Rockwell's Index of Exhibits, Exh. F at pp.2-3.) Plaintiffs' discovery responses were thus required to present facts showing that Rockwell was responsible for supplying those components to overcome the general rule that "a product manufacturer generally may not be held strictly liable for harm caused by another manufacturer's product." (O'Neil, *supra*, 53 Cal.4th at p. 362.)

Plaintiffs' responses to written discovery fail to identify an asbestos-containing product for which they allege Rockwell was responsible because they allege generally that Mr. Roberts was exposed to asbestos-containing electrical panels and components. (Rockwell's Index of Exhibits, Exh. F at pp.2-3.) Although Mr. Roberts's deposition testimony establishes that Allen Bradley products were present at his worksites, the testimony fails to establish that the products contained asbestos or that he worked with them in a manner that would have exposed him to asbestos. (Rockwell's Index of Exhibits, Exhs. J-K.) Mr. Roberts had no personal knowledge of whether the Allen Bradley products at his worksite contained asbestos and provided no testimony about the details of his work with those products. (*Id.*) The discovery record is devoid of facts supporting Plaintiffs' contention that Mr. Roberts was exposed to an asbestos-containing product for which Rockwell was responsible. Even if Plaintiffs are not required to specifically identify the product at issue down to the product's serial number, Plaintiffs' general assertion that Mr. Roberts was exposed to asbestos-containing electrical panels and components is insufficient to identify the asbestos-containing product present at Mr. Roberts's worksite. Although Mr. Roberts testified that he associated Allen Bradley with relays, controllers, and PDLs, the record is devoid of facts establishing that these products at Mr. Roberts's worksites contained asbestos or that Mr. Roberts worked with these products in a manner that exposed him to asbestos. The lack of facts supports an inference that Plaintiffs lack and cannot reasonably obtain evidence to support their claims against Rockwell. Accordingly, Rockwell satisfies its burden on summary judgment. The burden shifts to Plaintiffs.

Plaintiff's Burden

Plaintiffs argue

in opposition that Rockwell admitted that Allen Bradley equipment contained asbestos. (Opp. at p.4.) Plaintiffs provide an excerpt of Mr. Roberts's deposition testimony (Blumenfeld-James Decl., Exhs. A-E), Mr. Roberts's declaration (Id., Exh. F), Rockwell's answers to standard interrogatories (Id., Exh. G), a copy of a letter regarding Allen Bradley switch components (Id., Exh. H), and the deposition of Rockwell's corporate representative taken in another matter (Id., Exh. I).

The excerpted

deposition testimony consists largely of the same testimony offered by Rockwell in its moving papers and fails to establish that the Allen Bradley products Mr. Roberts worked with contained asbestos. Although Mr. Roberts testified that there was dust in the cabinets containing electrical components he worked with, this portion of the deposition testimony is taken out of context and fails to establish that Allen Bradley products produced the dust or that the dust contained asbestos. (Blumenfeld-James Decl., Exh. B at 145:5-18.) Plaintiffs direct the court to a portion of the deposition excerpts wherein Mr. Roberts testified that he occasionally scraped or sanded arc chutes. (Id., Exh. E at 47:4-9.) However, the arc chutes referenced in this excerpt were Cutler Hammer arc chutes. (Id. at 47:1-3.) The deposition testimony thus fails to establish whether the Allen Bradley products at Mr. Roberts's worksites contained asbestos or whether Mr. Roberts worked with the products in a manner that would have exposed him to asbestos.

Mr. Roberts's

declaration likewise contains no information about whether the motors contained asbestos. Even if it did, Mr. Roberts executed the declaration in Arizona and failed to sign it under penalty of perjury under the laws of the State of California as required by Code of Civil Procedure section 2015.5. The court sustained Rockwell's objections to the prior deposition testimony given by its corporate representative in another matter and the bulletin pertaining to Allen Bradley switch components.

Plaintiffs'

supplemental opposition directs the court's attention to additional deposition testimony of Rockwell's PMQ, Andrew Jaap. Mr. Jaap testified that Rockwell was the successor-in-interest to Allen Bradley. (Blumenfeld-James Supp. Decl., Exh.

1 at 20:20-24.) When Plaintiffs' counsel asked Mr. Jaap to identify which electrical power products that might have been used at facilities like the Kaiser Steel facility between 1966 and 1983 that contained asbestos, Mr. Jaap responded "I don't know. I don't know without some additional information such as bulletin, size, series, and year of manufacturing of the product, where – and what it might have contained or what components might have been part of that assembly." (Id. at 38:7-39:2.) Rockwell's counsel objected on the grounds that the question was overbroad, called for speculation, and assumed facts. (Id. at 38:21-22.) Mr. Jaap further testified that he did not know what was at Kaiser Steel. (Id. at 39:17-23.) Although Allen Bradley may have sold "some products that may have contained some subcomponents that might have had an encapsulated chrysotile asbestos," he could not identify which products were at Kaiser Steel without bulletin, size, series, and year of manufacture. (Id.) Mr. Jaap testified that there was not enough information or evidence for him to determine what products Mr. Roberts might have worked with. (Id. at 49:7-50:17.)

Plaintiffs argue

in the supplemental opposition that "Mr. Jaap's deposition testimony confirms that Rockwell has failed to meet its summary judgment burden in this case. Mr. Jaap was unable to testify that decedent Jackie Roberts did not work with asbestos-containing Allen-Bradley electrical products...Mr. Jaap acknowledges that some Allen-Bradley electrical equipment did contain asbestos until 1978...He does not have enough information, however, to determine whether the Allen-Bradley products used by Mr. Roberts contained asbestos...He could not rule it out...He was unable to say that Allen-Bradley products at issue did not contain asbestos, he could only go so far as to say he did not have enough information to determine if they were asbestos-containing." (Supp. Opp. at p.2.)

Plaintiffs'

supplemental opposition fails to present affirmative evidence necessary to meet their burden on summary judgment to show that Mr. Roberts was exposed to an asbestos-containing product for which Rockwell was liable. Plaintiffs' argument that Mr. Jaap's testimony shows that Rockwell failed to shift its burden on summary judgment is without merit. It was not Rockwell's burden to establish that Mr. Roberts did not work with asbestos-containing Allen-Bradley products. Rather, it was Rockwell's burden to show that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Roberts was exposed to an asbestos-containing product for which Rockwell was responsible. Rockwell met this burden by showing Plaintiffs' discovery responses were devoid of facts

supporting their claims against Rockwell. It is now Plaintiffs' burden to present affirmative evidence that Mr. Roberts was exposed to an asbestos-containing product for which Rockwell is responsible. Mr. Jaap's deposition testimony establishes that Rockwell does not know what products were at Mr. Roberts's Kaiser Steel worksite and that the evidence available is insufficient for Mr. Jaap to identify which products Mr. Roberts worked with or whether they contained asbestos. Mr. Jaap's testimony thus fails to establish that Mr. Roberts worked with an asbestos-containing Allen Bradley product.

Plaintiffs

fail to present affirmative evidence establishing Mr. Roberts was exposed to an asbestos-containing product for which Rockwell was responsible. Accordingly, Plaintiffs fail to meet their burden on summary judgment. Rockwell's motion for summary judgment is granted.

IV.

Conclusion

Rockwell

satisfies its burden to show that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Roberts was exposed to an asbestos-containing product for which it was responsible. Plaintiffs fail to present affirmative evidence supporting their claims against Rockwell. The motion for summary judgment is granted. The motions for summary adjudication are moot.

Rockwell

to give notice.

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SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

;

VICTORIA A. ROBERTS, individually and a Successor in Interest to JACKIE

D. ROBERTS, deceased, et al.,

Plaintiffs, c

v.

3M COMPANY, et al.

Defendants. c c

Case No. 24STCV31579

c c c c

Hearing Date: June 29, 2026

Time:

9:00 a.m.

c [TENTATIVE] ORDER

RE: c

SCHNEIDER ELECTRIC USA, INC.'S MOTION FOR SUMMARY
JUDGMENT OR ALTERNATIVELY, ADJUDICATION

I.

Background

On June 13, 2025, Plaintiffs Victoria A. Roberts, individually and as Successor in Interest to Jackie D. Roberts, deceased, Kenneth Roberts, and Cheryl Martin filed their first amended complaint for wrongful death, personal injury, and survivorship, alleging Mr. Jackie Roberts developed malignant mesothelioma from direct exposure to asbestos-contaminated talc products and from exposure to asbestos in construction materials and electrical equipment from 1966 to 2007 while working as a laborer and electrician. Jackie Roberts died on March 8, 2025, due to mesothelioma. As against Schneider Electric USA, Inc. ("Schneider" or "Defendant"), Plaintiffs sue Schneider for its activities as its former entity, Square D Company ("Square D").

On March 19, 2026, Schneider moved for summary judgment on

the grounds that Plaintiffs lack and cannot reasonably obtain evidence to support their claims that Mr. Roberts worked with or around any asbestos-containing product for which Schneider was responsible. Schneider also moves for summary adjudication of the causes of action for negligence, strict liability, false representation, intentional tort/intentional failure to warn/concealment, breach of express and implied warranties, and conspiracy, and Plaintiffs' claim for punitive damages.

On May 21, 2026, Plaintiffs opposed, arguing their discovery responses are not factually devoid because their responses provide detailed information about Mr. Roberts' exposure to Schneider's products. Plaintiffs further argue that Schneider's evidence fails to negate any element of Plaintiffs' claims for false representation, intentional tort/intentional failure to warn/conceal, breach of implied warranty, and punitive damages. Plaintiffs also request a continuance of the hearing on the instant motion if the court were inclined to grant any part due to the deposition of Schneider's PMK being scheduled the day before the opposition was due.

On June 1, 2026, Schneider replied, arguing there is no evidence that the products at issue contained asbestos and the discovery responses are factually devoid on this question. Schneider further argues that Plaintiffs' request for additional time if any part of this motion is granted should be denied because Plaintiffs have not sufficiently pled necessity or diligence. Lastly, Schneider argues there is no evidence that Schneider acted with malice, fraud, or oppression as to the punitive damages claim.

On June 12, 2026, the court granted Plaintiffs' request for leave to submit a supplemental opposition based on the deposition testimony of Schneider's corporate representative, William Henry Pratt. On June 17, Plaintiffs filed supplemental opposition arguing that, according to Mr. Pratt, Schneider sold asbestos-containing contactors and relays during the time of Mr. Roberts' employment at Kaiser Steel.

On June 22, 2026, Schneider replied, arguing that Plaintiffs' opposition offers no evidence that the Square D contactors and relays Mr. Roberts allegedly worked with contained asbestos. Schneider also argues that Plaintiffs' supplemental opposition was untimely served pursuant to LAOSD Asbestos Litigation – Order Authorizing

Electronic Service filed on October 25, 2011, because the document was served on June 17, 2026, at 8:03 P.M.

Schneider

meets its burden to show that Plaintiffs lack and cannot reasonably obtain evidence to support their claims that Mr. Roberts was exposed to asbestos through an asbestos-containing product for which it is responsible. Plaintiffs fail to present affirmative evidence supporting their claims against Schneider. Schneider's motion for summary judgment is granted. The motions for summary adjudication are moot.

II.

Schneider's Evidentiary Objections

Overruled:

1. Defendant

Schneider Electric USA, Inc.'s Answers to Plaintiff's Standard Interrogatories and Request for Production of Documents ("Carpenter ROG Resp."), dated February 2, 2021, attached as Exhibit "G" to the Index of Exhibits referenced in Jordan Blumenfeld-James' Declaration in Support of Plaintiffs' Opposition. Schneider objects on the grounds that the document constitutes double hearsay. Schneider argues that the document itself is hearsay and Plaintiffs' reliance on statements made within the document are also hearsay. The responses were provided by Schneider and are being used as evidence against Schneider here. The responses are admissible pursuant to Code of Civil Procedure section 2030.410. The objection is overruled.

2. Defendant

Square D Company's Responses to Plaintiffs' Standard Interrogatories Pursuant to General Order No. 29, In Re: Complex Asbestos Litigation, Superior Court of the State of California, County of San Francisco, attached as Exhibit "N" to the Index of Exhibits referenced in Jordan Blumenfeld-James' Declaration in Support of Plaintiffs' Opposition. Schneider objects on the grounds that the document constitutes double hearsay. Overruled for the same reason as no. 1.

Sustained:

3. Deposition

of Henry Pratt, 12/5/13, attached as Exhibit "K" to the Index of Exhibits

referenced in Jordan Blumenfeld-James' Declaration in Support of Plaintiffs' Opposition. Plaintiff fails to identify a valid hearsay exception to support the admissibility of this prior testimony. Plaintiff fails to rebut the general rule against the admissibility of former deposition testimony. (Berroteran v. Superior Court (2022) 12 Cal.5th 867, 895 ["The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony."].) Plaintiff offers no evidence or argument to support the admissibility of this deposition and do not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the Berroteran factors bear in favor of the admissibility of the deposition.

4. Deposition

of Square D's 30(b)(6) witness William Pratt taken November 20, 2019, attached as Exhibit "H" to the Index of Exhibits referenced in Jordan Blumenfeld-James' Declaration in Support of Plaintiffs' Opposition. Sustained for the same reason as no. 3.

5. Deposition

of Square D's 30(b)(6) witness Robert Barbaglia taken in the case of Eubanks v. AW Chesterton et al. on June 12, 2007., attached as Exhibit "J" to the Index of Exhibits referenced in Jordan Blumenfeld-James' Declaration in Support of Plaintiffs' Opposition. Sustained for the same reason as no. 3.

6. August

23, 1985 memo re: "elimination of asbestos materials" attached as Exhibit "I" to the Index of Exhibits referenced in Jordan Blumenfeld-James' Declaration in Support of Plaintiffs' Opposition. Schneider objects on the grounds that the document is inadmissible hearsay. The memo is an out-of-court statement used to prove that Schneider/Square D products contained asbestos and the company had knowledge. The objection is sustained.

7. Carey

Canada, Inc's Answer to Interrogatories Directed to Defendants in Martin v. General Refractories Co In the Court of Common Pleas of Allegheny County, PA dated December 1, 1983, attached as Exhibit "L" to the Index of Exhibits referenced in Jordan Blumenfeld-James' Declaration in Support of Plaintiffs' Opposition. Schneider objects on the grounds that the document is inadmissible hearsay. Binding California appellate

authority indicates that courts should be cautious in permitting litigants to introduce a third party's interrogatories as evidence in lieu of depositions because of a lack of opportunity for the party against whom the interrogatory is admitted to propound cross interrogatories or otherwise challenge the veracity of the evidence through cross examination. (See *Petersen v. City of Vallejo* (1968) 259 Cal.App.2d 757, 776 ["The answers of one party, the State, elicited in response to interrogatories propounded to it by the plaintiff, cannot be used as evidence against a third party, the City."]; *Associates Discount Corp. v. Tobb Co.* (1966) 241 Cal.App.2d 541, 551-552 ["It would be unreasonable and absurd to permit questions and answers respectively propounded and received in an interrogatory proceeding between two parties to be used against a third party when the latter is not given the right to propound cross-interrogatories or to exercise the privilege conferred upon the party initiating the proceeding by section 2030 to require the adverse party to whom the interrogatories are directed to make a further response. Equally unreasonable and absurd would be a system for the preservation of the testimony of witnesses generally which permits such by an interrogatory procedure in lieu of depositions where the right to cross-interrogate or to examine orally is conferred upon all parties, but permits an alternate interrogatory procedure to be invoked by one of the parties when the witness is an adverse party under which the right to cross-interrogate or to examine orally is not extended to other parties."] *Castaline v. City of Los Angeles* (1975) 47 Cal.App.3d 580, 588-589 ["It is something quite different, however, to use responses furnished by party B in answer to interrogatories propounded by party A against party C for evidentiary purposes. The basis for the holding in *Associates* that C, the third party—here the City—has no 'right to propound cross-interrogatories or to exercise the privilege conferred upon the (third) party initiating the proceeding . . . to require the adverse party . . . to make a further response' [Citation] is as valid as ever. Nothing in the 1971 amendment permitting the service of interrogatories on any party expanded the third party's right to inject itself into a discovery process between two other parties."].)

8. January

27, 1977 memo from Durez to Square D, attached as Exhibit "M" to the Index of Exhibits referenced in Jordan Blumenfeld-James' Declaration in Support of Plaintiffs' Opposition. Schneider objects on the grounds that the document is inadmissible hearsay. The memo, especially the highlighted portion, is an

out-of-court statement by a third party used to prove Hooker Durez, a fiber supplier, warned Square D/Schneider about the health hazards association with asbestos in finished mold compounds. The objection is sustained.

III.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

The court is required to view the evidence in the light most favorable to Plaintiffs as the nonmoving party and “liberally construe plaintiff[s] evidentiary submissions and strictly scrutinize defendant[s] own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff[s] favor.” (McDonald v. Antelope Valley Community College Dist. (2008) 45 Cal.4th 88, 96–97.)

B.

Causation

In asbestos

litigation, a plaintiff is required to show causation. A plaintiff must show "some threshold exposure to the defendant's defective asbestos-containing products" and must further establish to a "reasonable medical probability" that a particular exposure or series of exposures was a "legal cause" of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) "[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant's product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor." (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416 (Lineweaver).)

Where a

plaintiff's allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence "defendant's product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it..." (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420].) Where a defendant manufactures similar products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant's products. (See Collin v. CalPortland Co. (2014) 228 Cal.App.4th 582, 593.)

California

law generally does not hold a manufacturer of a product liable for replacement asbestos-containing subcomponents supplied by another manufacturer. California accepts the "bare metal defense" such that manufacturers of a product are not generally liable for design defect or failure to warn when asbestos-containing sub-components it did not manufacture or supply are incorporated into its product. (O'Neil v. Crane Co. (2012) 53 Cal.4th 335, 362 ["We reaffirm that a product manufacturer generally may not be held strictly liable for harm caused by another manufacturer's product. The only exceptions to this rule arise when the defendant bears some direct responsibility for the harm, either because the defendant's own product

contributed substantially to the harm [citation] or because the defendant participated substantially in creating a harmful combined use of the products [citation]").)

1.

Defendant's Burden: Factually Devoid

Schneider

moves for summary judgment on the grounds that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Roberts was exposed to an asbestos-containing product for which it is responsible. Specifically, Schneider argues that Plaintiffs' discovery responses are factually devoid of evidence that Schneider exposed Mr. Roberts to an asbestos-containing product which Schneider was responsible for under its former name, Square D: "Plaintiffs' Responses to Square D's comprehensive discovery are non-responsive and factually devoid. There is certainly no information specific to the products in this case that would establish the alleged Square D products contained asbestos. Moreover, there is no information that would allow Square D or the jury to determine what actual Square D products are at issue, as Square D manufactured hundreds, if not thousands, of the alleged general product categories of "contactors" and "relays" over decades." (Mot. at p. 4, emphasis in original.) Schneider also argues that Plaintiffs failed to identify an injury-producing product because Plaintiffs only identified general categories of products made by Square D that Mr. Roberts allegedly worked with. (Mot. at p.6.)

In

opposition, Plaintiffs argue that Schneider failed to shift its burden on summary judgment because their discovery responses and Mr. Roberts' testimony include significant detail establishing that Mr. Roberts was exposed to asbestos through his contact with Square D's electrical equipment. (Opp. at p. 6 ["Under Aguilar, Square D was required to show 'admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.'" ([Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 855].) Because Plaintiffs' responses contain specific, responsive facts, they are not factually devoid as a matter of law. ([Ganoe v. Metalclad Insulation Corp. (2014) 227 Cal.App.4th 1577, 1578-1579.]) Plaintiffs identified Mr. Roberts as a fact witness and he gave detailed deposition testimony regarding his career long work with Square D contactors and relays. He also gave testimony in the form of his declaration, which was provided to Square D and the other defendants in advance of the deposition so that all defendants could cross examine him on his

statements therein. Square D has failed to shift the burden to Plaintiffs.”].) Additionally, Plaintiffs argue that Mr. Roberts’ testimony includes sufficient information to confirm the existence of triable issues of fact as to his exposure to asbestos-containing Square D equipment. (Opp. at pp. 6-7 [“He testified that he worked with Square D relays and contactors beginning in 1966 and throughout his decades-long career as an electrician at multiple worksites. Further, his work with Square D relays and contactors created dust that he would blow out with his breath or compressed air. Square D electrical equipment contained asbestos during the years Mr. Roberts worked with it.”].)

In reply, Schneider reiterates that Plaintiffs fail to present sufficient evidence regarding the asbestos content of the products Mr. Roberts worked with. (Reply at pp. 3-4.) Schneider also states Plaintiffs’ discovery responses contained no information specific to the products in this case that Mr. Roberts worked with or around. (Reply at pp. 4-5.)

In supplemental opposition, Plaintiffs argue that per Mr. Pratt’s testimony, Schneider sold asbestos-containing contactors and relays while Mr. Roberts was employed at Kaiser Steel, and that Schneider cannot deny that its alleged asbestos-containing contactors and relays were present at any of Mr. Roberts’ worksites because sales-related records are only retained for three years. (Supp. Opp., at p. 1.) Lastly, Plaintiffs argue that based on the testimony, Schneider never tested its products for tremolite or for asbestos fiber release despite workers compensations claims associated with asbestos disease. (Id.)

In supplemental reply, Schneider argues that Plaintiffs sidestep and fail to identify any relevant evidence or admission that responds to whether there is any evidence that the Square D contactors and relays Mr. Roberts may have worked with or around contained asbestos. (Supp. Reply at p. 2.)

Schneider satisfies its burden to show that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Roberts was exposed to an asbestos-containing product for which it was responsible. Schneider argues that Plaintiffs’ responses to comprehensive written discovery failed to include information about the asbestos content of the products Mr. Roberts worked with. When asked to state all facts regarding Mr. Roberts’ exposure to products manufactured by Square D and

other named defendants, Plaintiffs responded in relevant part:

“Decedent JACKIE

ROBERTS’ exposure to asbestos and asbestos-containing products and/or equipment and/or equipment solely designed to be used with asbestos-containing products occurred at various locations at various locations from 1966-2007. Plaintiff alleges that during this employment he worked with, or around others working with, asbestos containing products and [products] designed to be used with asbestos which caused him to be exposed to asbestos. It is this exposure to asbestos that caused Mr. Roberts to develop mesothelioma, which was the ultimate [cause] of his death. The products Mr. Roberts worked with and around [during] this employment was made by various entities, including, though not [necessarily] limited to: ... SCHNEIDER ELECTRIC USA, INC. (f/k/a SQUARE D COMPANY) ...

Plaintiffs claim

defendants’ products are defectively designed in that the products released respirable asbestos fibers when used or misused in a way that was reasonably foreseeable to defendants. Defendants designed their products to incorporate and/or operate with asbestos or asbestos-containing materials and the design of defendants’ products required Mr. Roberts or others in his vicinity to drill, sand, or otherwise disturb asbestos or asbestos-containing materials, causing the release of respirable asbestos fibers which Mr. Roberts breathed. Ordinary users of defendants’ products did not reasonably expect that use of defendants’ products would result in serious bodily injury and/or death. At the time of decedent used defendants’ products, they were in substantially the same condition as when they left defendants’ possession, or any changes made to the product were reasonably foreseeable to defendants.

Specific to Mr.

Roberts’ work at the Santa Fe Railroad, in San Bernardino, CA from 1984 1986, Mr. Roberts was a shop electrician. Although there were occasions where Mr. Roberts worked at various locations at the yard, he primarily worked in the rebuild area of the shop as a shop electrician. He performed all types of electrical work including, but not limited to, electric motor testing at the end of a motor rebuild, motor rebuilds, winding [and] stripping amatures, assembling DC traction, [repair] work on generators, and working around others working on friction products. He was exposed to asbestos at this site from electrical materials, including but not limited to, circuit breakers, high voltage [electrical] equipment, wire, high voltage wire, conduit connectors, electrical [panels], cable, generators, motors, and grinding wheels, which he

removed, replaced, repaired and/or installed on a daily basis, as well as the equipment maintained and installed by other trades in his daily vicinity, including on cranes and friction and insulation components of trains. Mr. Roberts himself as well as Defendants corporate representatives and records are the current basis/witnesses for this work, though Plaintiffs are actively seeking to identify co-workers."

(Lee Decl., Exh. A.)

In addition, in response to Schneider's Special Interrogatories requesting information regarding evidence of Square D products or components that caused or contributed to Mr. Roberts' death by containing asbestos and identification of specific component, pieces, and products, Plaintiffs responded:

"Decedent Jackie

Roberts's exposure to asbestos and asbestos-containing products and/or equipment and/or equipment solely designed to be used with asbestos-containing products occurred at various locations from 1966-2007. Plaintiffs allege that during this employment he worked with, or around others working with, asbestos containing products and products designed to be used with asbestos which caused him to be exposed to asbestos. It is this exposure to asbestos that caused Mr. Roberts to develop mesothelioma, which was the ultimate cause of his death. The products Mr. Roberts worked with and around during this employment was made by various entities, including, though not necessarily limited to: Square D Electric Panels manufactured, sold or supplied by SCHNEIDER ELECTRIC USA, INC..."

(Lee Decl., Exh. G [emphasis in original].)

When

Schneider asked Plaintiffs to produce all documents supporting Mr. Roberts' work with or around Square D products, Plaintiffs produced a number of Schneider's prior corporate documents, deposition testimony, trial testimony, and other relevant information in other unrelated cases. (Lee Decl., Exh. I.)

Mr. Roberts testified in his deposition that he worked at Kaiser Steel on some existing electrical equipment starting in 1962. (Lee Decl., Exh. C, at 12:44:36-12:44:40; Exh. D, at 12:15:08.) Mr. Roberts put Square D relays and motor starters on the motor control boards as

part of his work. (Id., at 12:55:26-12:56:07.) Mr. Roberts noted the Square D label “was [everywhere]” and the “[p]anel covers were embossed. (Id. at 12:58:50, 12:59:09.) Square D products were found in “almost every place” Mr. Roberts’ worked, and he worked primarily with Square D’s contactors and relays. (Id., Exh. D., at 12:14:18, 12:15:31-12:15:50.)

Schneider submitted Mr. Roberts’ declaration in support of their motion. However, Mr. Roberts executed the declaration in Arizona and failed to sign it under penalty of perjury under the laws of the State of California as required by Code of Civil Procedure section 2015.5. Accordingly, the declaration lacks evidentiary value.

In his discovery responses to the standard interrogatories, Mr. Roberts stated that he was employed at the Kaiser Steel Mill from 1966-1984, the Santa Fe Railroad from 1984-1986, the Inland Contained from 1986-1989, Sundance Spas/Clark Manufacturing in 1989, Plaxicon Company from 1990-1993, Goldendale Aluminum from 1993-2000, and the Bonneville Dam from 2000-2007. (Lee Decl., Exh. B, pp. 2-3.) Other than the Kaiser Mill and Santa Fe Railroad, where Mr. Roberts states he was “exposed to asbestos...from electrical materials,” asbestos existence at the other job sites is unknown at this time because “[i]nvestigation is ongoing as to the asbestos content of such materials.” (Id.) When asked to describe each product that Mr. Roberts contends contains asbestos with as much detail as possible, Mr. Roberts provided the same generalizations as Plaintiffs’ other discovery responses without specifically identifying the products. (Id., at pp. 4-11.) In addition, Mr. Roberts states he “wore respiratory protection throughout his career, including at the Santa Fe Railroad.” (Id., at p. 15.)

Plaintiffs’ discovery responses give rise to an inference that they lack and cannot reasonably obtain evidence to support their claims that Mr. Roberts was exposed to an asbestos-containing product for which Schneider was responsible. Plaintiffs’ discovery responses were required to provide a factual basis to show Schneider’s products were present at his worksite and that these products contained asbestos. (Turley, supra, 18 Cal.App.5th at p. 980; Collin, supra, 228 Cal.App.4th at p. 593.) Additionally, Plaintiffs’ evidence must support a reasonable inference that it is more likely than not that the asbestos-containing version of the Schneider’s products were present at Mr. Roberts’s worksite. (Collin, supra, 228 Cal.App.4th at p.593.)

Plaintiffs' interrogatory responses

and Mr. Roberts' testimony identified Schneider relays and contactors as the products that exposed Mr. Roberts to asbestos but fail to state the factual basis for the assertion that the relays and contactors contained asbestos. (Lee Decl., Exhs. A, G, & C.)

Plaintiffs' discovery responses and

Schneider's evidence give rise to an inference that Plaintiff's lack and cannot reasonably obtain evidence that Mr. Roberts was exposed to an asbestos-containing product for which it is responsible. Plaintiffs' responses to written discovery fail to specify a particular Square D product that exposed Mr. Roberts to asbestos. (Lee Decl., Exh. A.) Although Mr. Roberts established at his deposition that Square D products were present at his worksite, Mr. Roberts' testimony fails to establish that those products contained asbestos. (Lee Decl., Exhs. C-D.) The discovery record thus lacks facts establishing the Square D products present at the worksite exposed Mr. Roberts to asbestos. The lack of facts supports an inference that Plaintiffs lack and cannot reasonably obtain evidence to support their claims against Schneider. Accordingly, Schneider satisfies its burden on summary judgment. The burden shifts to Plaintiffs.

2.

Plaintiffs' Burden:

Plaintiffs

argue in opposition that Schneider failed to shift its burden because Schneider did not offer evidence showing Mr. Roberts could not have been exposed to asbestos from Square D's products and Mr. Roberts and Plaintiffs gave detailed deposition testimony regarding Mr. Roberts' work with Square D contractors and relays during his career. Plaintiffs also argue that Mr. Roberts testified to how his work with Square D contactors and relays led to dust that he would blow out with compressed air or his breath. Lastly, Plaintiffs contend Square D electrical equipment contained asbestos during the years Mr. Roberts worked with them.

Plaintiffs'

exhibits "A" through "F" consist of Mr. Roberts' deposition testimony. Schneider has already advanced exhibits "C," "D," and "F."

Plaintiffs'

exhibits "A," "B," and "E" consist of Mr. Roberts' deposition testimony. In exhibit "A," Mr. Roberts states he is born on September 12, 1943, and he is diagnosed with mesothelioma, or lung cancer, from exposure to asbestos. (Blumenfeld-James Decl., Exh. "A," 13:20-21, 14:2-4.)

In exhibit "B," Mr. Roberts states he would get a respirator when he encountered dust and debris at work and blew everything out to make the job easier for electricians, even though he worked in "one of the cleanest mills." (Blumenfeld-James Decl., Exh. "B," 11:40:02-11:40:19.) In exhibit "E," Mr. Roberts states he had to scrape or sand arc chutes sometimes. (Blumenfeld-James Decl., Exh. "E," 11:19:02-11:19:14.) The deposition testimony fails to provide affirmative evidence that the Square D contactors and relays Mr. Roberts used at the various work sites contained or exposed Mr. Roberts to asbestos.

Plaintiffs'

exhibit "G" consists of Schneider's responses to Plaintiff's Standard Interrogatories and Request for Production of Documents ("Carpenter ROG Resp."), dated February 2, 2021. In exhibit "G," Schneider states "at the present time, Square D is generally unable to ascertain specifically to whom its products were sold during time periods when certain of its products may have included molded or bonded component parts manufactured from composite materials which could have contained some quantity of encapsulated asbestos." (Blumenfeld-James Decl., Exh. "G," pp. 5-6.) The responses fail to provide affirmative evidence that Schneider's products contained asbestos.

Plaintiffs'

exhibits "H," "J," and "K" consist of deposition testimony from Square D's 30(b)(6) witnesses William Pratt (taken November 20, 2019, and taken in the case of Del Pino, et al. v. ABB Ltd, et al. on December 5, 2013) and Robert Barbaglia. The court sustained Schneider's objections to these exhibits because they are inadmissible former deposition testimony. The court likewise sustained Schneider's objections to Plaintiffs' Exhibits "I" and "L."

Plaintiffs

also direct the court's attention to Square D Company's Response to Plaintiffs' Standard Interrogatories Pursuant to General Order No. 129, In Re: Complex Asbestos Litigation, Superior Court of the State of California, County of San Francisco, specifically responses to Interrogatories No. 22 & 37. (Blumenfeld-James Decl., Exh. "N.") In response to No. 22, which asks whether Square D has conducted any tests or studies on ambient asbestos dust levels at locations or

job sites where asbestos-containing products were installed, used, or removed, Square D states in relevant part it has not and is “unaware of any facts or circumstances necessitating such testing in connection with the use and handling of electrical equipment.” (Id., at p. 21.) In response to No. 37, which asked whether Square D had warned of asbestos’ health hazards in relation to raw asbestos and the asbestos-containing products listed in response to No. 29 and 31, Square D stated it had not and “is unaware of facts or circumstances necessitating the provision of such warnings or instructions.” (Id., at p. 38.) The court notes that in response to No. 29, Square D objected on the grounds that “it erroneously presumes that Square D mined, manufacture, processed, sold and/or packaged ‘asbestos-containing products,’” and the Plaintiffs in that litigation did “not claim that they worked at or were otherwise exposed to asbestos-containing products at Square D facilities.” (Id., at p. 28.) The responses fail to provide affirmative evidence that Schneider’s products contained asbestos.

Plaintiff’s

supplemental opposition directs the court’s attention to Mr. William Henry Pratt’s deposition taken on May 21, 2026. (Blumenfeld-James Supp. Decl., Exh. “P”.) Mr. Pratt is the corporate representative for Schneider and states he speaks for the company. (Id., 11:13-23.) He attests that sales-related records are only kept for three years, with the policy dating back to at least 1984 when he started with the company. (Id., 20:13-22.) Mr. Pratt does not dispute that Schneider, or Square D, made contactors and relays during the timeframe at issue here, and states that Schneider does not have the documentation to rule in or rule out the sale of its contactors or relays to any distributors that ultimately provided to either the Kaiser Steel, Santa Fe Railroad, or Inland Container or direct sales to the worksites based on the retention policy. (Id., 41:8-15, 46:8-25, 47:1-6.) In response to counsel’s question regarding “any national names that [Mr. Pratt] can recall that were distributors for the Square D products at any point in time,” Mr. Pratt states that some of the distributorships includes Graybar, W.W. Grainger, Home Depot, and Lowe’s. (Id., 56:1-9.) As to the Peru cold mold facility, Mr. Pratt stated that it was operational prior to the 1960s, and while the plant stayed open, the process stopped because Schneider discontinued purchasing asbestos fibers from Carey Canadian sometime between 1972 and 1975. (Id., 60:20-25, 61:1-12.) Mr. Pratt also stated that while Schneider tests its products for hazards, it does not test for asbestos-related hazards or fiber release, other than the testing conducted by Skretvedt, which is in the production set, because Schneider does not “believe that its products pose

an asbestos-related hazard when used as intended.” (Id., 79:1-15, 80:3-14.) Lastly, Mr. Pratt states that there have been workers’ compensation claims made against Schneider for asbestos-related diseases. (Id., 80:18-25, 81:1-6.) The court notes that Mr. Pratt does not state that Square D’s contactors or relays contained asbestos in his deposition. Mr. Pratt’s deposition fails to provide affirmative evidence that Schneider’s products contained asbestos or that the Square D products Mr. Roberts alleges to have worked with or around at the worksites contained asbestos.

Plaintiffs

fail to provide affirmative evidence establishing Mr. Roberts was exposed to asbestos by an asbestos-containing product for which Schneider was responsible. Although Plaintiffs provide evidence to show that some Schneider products presumably contained asbestos during parts of the relevant time period, there is no evidence that the products present at Mr. Roberts’ worksite contained asbestos. There is also no evidence that Mr. Roberts used the asbestos-containing products identified in the evidence. Plaintiffs fail to identify or narrow down the products Mr. Roberts used that allegedly contained asbestos. Plaintiffs fail to meet their burden on summary judgment to raise a triable issue of material fact over whether Schneider caused Plaintiffs’ injuries. Accordingly, Schneider’s motion for summary judgment is granted.

IV.

Conclusion

Schneider

meets its burden to show that Plaintiffs lack and cannot reasonably obtain evidence to support their claims that Mr. Roberts was exposed to asbestos through an asbestos-containing product for which it is responsible. Plaintiffs fail to present affirmative evidence supporting their claims against Schneider. Schneider’s motion for summary judgment is granted. The motions for summary adjudication are moot.

Schneider is ordered to give notice.